ONE-OFF SHIURIM

How Do We Know It's an Etrog? The Oral Law and Its Hints

Derech Hashem, Maamar Halkarim

Sefer: Maamar Halkarim by Rabbi Moshe Hayim Luzzatto (the Ramhal), printed at the end of Derech Hashem **Section:** Maamar Halkarim, essay 10: the Oral Law, the 13 principles and the asmakhta **Shiur:** Part of Dayan Daniel Kada's Derech Hashem series at Tiferet Eyal, Monday 25 July 2022

These notes are based on an automatic transcript of the recording.

Recap

The written Torah cannot stand alone; the Oral Law is its explanation. God deliberately did not write everything out, and last time the group discussed possible reasons and the three ways the Oral Law relates to the verses: explaining what is unclear (such as totafot), choosing between two possible readings, and sometimes reading a verse quite differently from its plain sense (such as "an eye for an eye" meaning money). This class turns to the 13 principles and to the asmakhta.

The 13 principles come from Sinai

The Ramhal writes that God wrote the Torah according to specific rules, and to understand His intention we must interpret according to those rules. An interpretation that fits the words well, or even explains them better, is still not correct if it does not follow the rules, because the Author intended otherwise. These rules are the 13 principles.

This answered a question from the previous class: the 13 principles are from Moshe, given by God at Sinai. The Rabbi compared them to the rules of statutory interpretation. You may have your own reading of legislation, but it must follow the accepted rules. A beautiful interpretation of a verse that does not fit the 13 principles "cannot be the correct one". They are the core of how we interpret the Torah.

A participant asked whether two principles can lead to different answers. The Rabbi agreed that this happens: one Tanna uses a gezerah shavah, another a different principle. Originally there was one clear tradition; the different answers arose as it was lost, and a decision then has to be made.

Is one principle stronger? Logic, such as kal vahomer, against a gezerah shavah received from one's teacher? The Rabbi said a gezerah shavah traced back through the generations would normally win. Not because it is "stronger", but because it is more definitive: it goes back further.

The asmakhta

The Ramhal now explains the asmakhta. All the laws, positive and negative, were transmitted from Moshe. But they are also hinted at in various places in the Torah, by the methods of allusion the Sages knew well. God wanted us also to toil to find these hints of the Oral Law within the written Torah. So the Sages work to find them, each according to what he thinks fits best, and the Gemara often debates which verse is the source of a law.

Many of these sources, read simply, do not mean what the law says. The Rabbi called this "such an important point". The law was already known and accepted. The Sages were not reading a verse and extracting a law from it; "that's ridiculous". They started from the law and looked for a place in the Torah to hang it on. And God wrote the verses in a way that leaves room for this.

The etrog, and why bother?

His great example is the etrog. The Torah says to take pri es hadar, "the fruit of a beautiful tree". There are many beautiful fruits. How does that mean an etrog? The Mishnah and Gemara bring several interpretations, such as reading hadar as "that which dwells", the fruit that stays on its tree from year to year. But no one read the verse and concluded from it that it means an etrog. "The opposite way. You knew it was an etrog. Now how are we going to make it fit the verse?"

A participant asked whether that makes the etrog a Halacha LeMoshe MiSinai. The Rabbi said no: that term is for laws with no hint at all in the Torah, such as black or square tefillin. Here there is a hint. The etrog is a biblical law; only the source found for it is an asmakhta. "If you take a lemon on the first day of Sukkot, you haven't fulfilled the misvah," however beautiful it is.

If the law is known anyway, why look for a source? The Rabbi said the Ramhal was clearly bothered by this too, and answered that this was God's will: that we search for hints and allusions in the Torah. The Ramhal adds that no one claims a particular reading was the intention of the verse. Rather, God wrote it in a certain way in order to hint at the law, in addition to its simple meaning. That is an asmakhta. The word comes from samekh, to support, as in "God supports all who fall". It is not the source of the law; it supports it.

A participant suggested reasons: the toil itself, and that finding a hint strengthens the tradition. The Rabbi noted that halacha does not depend on which hint you prefer. "The etrog is the Torah, full stop." Which verse you hang it on is up to you.

A second, weaker kind

Then there is a second kind of asmakhta, more superficial, for laws the Sages enacted themselves, with far-fetched sources in the verses. It is a reminder, zikaron. Yet the Ramhal says even this was intended by the Torah. God, who sees the future, hinted even at rabbinic laws such as Hanukkah or netilat yadayim, though from a great distance.

Here, said the Rabbi, there is a dispute. Netilat yadayim is purely rabbinic, yet the Sages bring a source from a verse in Aharei Mot about washing the hands. For the Ramhal this too was God's intention: a time would come when the Sages would institute netilat yadayim, and He hinted at it. The Maharal of Prague disagrees. The Sages use the verse simply as a mnemonic, a way to remember the law.

At this point the Rabbi had to take a phone call, and the class continued in a short second recording.

Summary

- The 13 principles of interpretation come from Sinai; an interpretation that ignores them cannot be correct.
- When principles conflict, a gezerah shavah received through the generations is usually more definitive than logic.
- An asmakhta hangs a known law on a verse; the law comes first and the verse supports it.
- The etrog is a biblical law from tradition; "the fruit of a beautiful tree" is only its support.
- For rabbinic laws, the Ramhal sees the verse as a hint God intended, while the Maharal sees it as a mnemonic.

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